OVERDRAFT AGAINST FIXED DEPOSIT(S) FOR INDIVIDUALS AND SOLE PROPRIETORSHIPS

IndusInd Bank

Primary Applicant Name	**CIF**
2nd Applicant Name:	
3rd Applicant Name:	

Name of Proprietor/Karta	**CIF**

Mode of Operation: ☐ Singly ☐ Jointly ☐ Either or Survivor

DETAILS OF FIXED DEPOSIT(S) against the security of which the Overdraft facility is applied for:

Sr No.	FD Number	Name of the FD Holder	Amount	Maturity Date	ROI

Loan to Value (LTV) %	Spread %	Interest Rate: (Spread+ Weighted Average Rate of FDs)

Sanctioned Limit (LTV*FD Value): ☐☐☐☐☐☐☐☐☐☐

TERMS & CONDITIONS

- Third Party/ Tax Saver FD/FD held by Minor/ is not allowed, for this facility for Resident Indians and NRE FD/FCNR for NRIs. OD limit and charges will be as decided as per the Bank's policy. All auto closure FDs will be converted to auto renewal mode, the overdraft facility will be renewed along with the deposit being renewed
- The rate of interest chargeable for the overdraft utilised or such other modified rates as notified by the Bank from time to time for the overdraft facility and the applicant(s) agree to abide by such modification.
- The validity of the Overdraft Facility will be for the period as may be stipulated by the Bank from time to time and shall require renewal. Till full and final repayment of the Overdraft utilised, charges payable in respect of such availment and cancellation of the Limit being effected, the Fixed Deposit(s) shall be held as security by the Bank and will be renewed from time to time at the sole discretion of the Bank at the rates prevailing at the time of renewal and without any reference to the Deposit Holders and such renewed Fixed Deposit(s) will continue to be held as security against the Overdraft.
- The Bank may, in its absolute discretion, discontinue, cancel and/or terminate an Overdraft already allowed and utilised, apply, set-off, appropriate and adjust the principal sum and all interest standing to the credit of the Deposit Holders, in relation to any or all of the Fixed Deposit(s) in or towards full or part satisfaction and liquidation of the balance outstanding under or in respect of the Overdraft.
- The applicants shall not subject to the extent as permitted make or assert any claim on the Bank, based on any theory of liability and In fact waive all their rights thereto in respect of any special, indirect, consequential or punitive damages as opposed to actual and direct damages arising in any way or connected with the Overdraft Facility or for any damage whatsoever caused by or arising from, directly or indirectly, the error, failure, negligence, act or omission of any other person, system, institution or payment infrastructure.
- The Bank may at its sole discretion modify downwards the OD limits and the applicants on being so communicated, be required to pay such amounts to the Bank to bring the facility within the new limit and Bank will have the right to appropriate such amounts from the Fixed Deposits if required.

DECLARATION

- I/We have read the terms and conditions of the Bank and agree to be bound by the same. I/We also understand that the grant of overdraft facility is subject to the Bank's discretion and the interest will be charged on the utilised amount at a rate specified by the Bank and that in case of a pre-mature closure of Fixed Deposit the bank will charge interest as per RBI / Bank's Guidelines issued from time to time.
- I / We agree to repay the principal amount of Overdraft on maturity and the interest amount as and when applied.
- I / We also confirm that the above deposits would not be permissible to be withdrawn till the time all charges and overdues linked to the overdraft facility are paid.
- I/We also promise to pay the Bank all related charges on availing overdraft services and give the right to the Bank to deduct / adjust these charges to my Deposit/s held with the Bank.
- I/We also undertake to inform the Bank in writing whenever I wish to discontinue availing of the overdraft facility and shall ensure payment of all dues and outstanding.
- I/We will utilise borrowed funds solely for bonafide purpose and as defined under regulatory framework from time to time. Under no circumstances the facility will be used for Relending purpose.
- I / We also understand and agree that all Fixed Deposit(s) will be converted to auto renewal mode and I / we have no objection to the same and that my/our OD account will be mapped to all Fixed Deposit with Fixed Deposit as collaterals. Importantly OD account will be auto renewed for 3 years.
- I/We declare to have given my/our consent to the Bank to disclose all information and data furnished by them to Credit Information Bureau India Limited (CIBIL) or any other credit bureau permitted to operate in India.
- I hereby declare disclosing / submitting the 'financial information' as defined in Section 3 (13) of the Insolvency and Bankruptcy Code, 2016 ('Code' for brief) read with the relevant Regulations/ Rules framed under the Code, as specified there under from time to time, in respect of the Credit/ Financial facilities availed from the Bank/ Lender, from time to time, to any 'Information Utility' ('IU' for brief) as defined in Section 3 (21) of the Code, in accordance with the relevant Regulations framed under the Code, and directions issued by Reserve Bank of India to the banks from time to time and hereby specifically agree to promptly authenticate the 'financial information submitted by the Bank/Lender, as and when requested by the concerned 'IU' .

- In consideration of the Bank agreeing to grant me an Overdraft facility for an amount not exceeding the predefined limit that may be held by the Bank in Fixed Deposits on my behalf, I hereby agree, record and confirm, that the Bank shall have a first charge on the amount/s of such Fixed Deposits as a continuing security for the due repayment by me to the Bank on demand of all the sums which at any time or from time to time become due and owing by me to the Bank in respect of the said Overdraft Facility and all interests, costs, charges, expenses, and other amounts whatsoever which may become due and payable by me to the Bank. I hereby irrevocably and unconditionally authorise the Bank to appropriate, adjust and set off the amount/s of such Fixed Deposits towards the dues of the Bank in the event of my failure to pay the amount demanded from me by the Bank, the demand of the Bank being conclusive as to my liability for repayment thereof and for the said purpose.
- I/we hereby expressly authorize the Bank:
- to break/ liquidate, any all of the Fixed Deposits even before the maturity date of such Fixed Deposits and adjust the amount thereof (including interest thereon) against the amount outstanding under the Overdraft Facility and/or in the Account and hereby agree and undertake not to hold the Bank responsible for any loss arising thereof including loss of interest on premature encashment; and
- in case the Overdraft facility is subsisting to renew without any further act, deed or thing from me/us any or all of the Fixed Deposits with interest thereon as per the rates then applicable for such periods as may be decided by the Bank, at its absolute discretion.

For Non Resident Indians

- I/We declare that the OD amount shall not be remitted outside India or credited in an NRE/FCNR (B) account and that loan proceeds will not be used for any activity where foreign investment is not permitted. I/We hereby declare that the overdraft sanctioned against my NRI deposit is for the purpose of meeting my personal / business expenditure and will not be utilized for relending, Investment in Real Estate Business, Agriculture and plantation activities.
- I/We hereby declare that I/We shall not seek premature withdrawal of the said Deposit(s) till the Overdraft facility is repaid by me/us. The above is without prejudice to the bank's right to prematurely close the Deposit(s) in case of default in payment of principal or interest or failure to adhere to any of the other terms and conditions as per the Overdraft application

Sole Proprietor Declaration:

I hereby declare that I am the sole - proprietor of the firm and I am solely responsible for liabilities thereof. I shall advise the Bank in writing of any change that may take place in the constitution of the firm and I will be liable to the Bank on any obligation which may be standing in the firm's name in Bank's books on the date of the receipt of such notice and until all such obligations shall have been liquidated. This provision of these presents shall be applicable to my successors and legal heirs wherever the context so requires and Bank may proceed against them in case of any claims that the Bank may have in respect of my sole-proprietorships' obligation against the Bank.

Lien Letter - Application for Overdraft against Fixed Deposit To IndusInd Bank Ltd.

Dear Sir / Madam,

Your Bank has agreed to grant me overdraft facility.

I / We hereby confirm and undertake that as security / collateral security for the due repayment of the liability arising out of the aforesaid Credit Facility / ies and the ultimate liabilities due / that may become due to the Bank from the Borrower and / or me / us, in addition to your right of set off, IndusInd Bank shall also have right at any time and without prior notice or reference to me / us and without my / our consent to adjust, appropriate or to set off any credit balance or any part thereof due to me / us in my / our Current / Savings / any other Deposit Account or any account whatsoever including the above mentioned Fixed / Fixed Deposit / Recurring Deposit Receipt(s) Account No.(s.) at any of IndusInd Bank branches in my / our name(s) ("Deposit") with or without joint names of any other persons on or before the dates of maturity thereof towards the satisfaction or part satisfaction of outstanding balances or loan, overdraft / cash credit or of the amounts due or to become due by me / us or by the aforesaid Borrower to you in any account including under the Credit Facilities at any of IndusInd Bank branch / branches whatsoever. The above Deposits shall continue to be available to the Bank as Security as such even if any Overdraft Facility runs into Credit / is reduced or extinguished or the credit facilities are renewed at any time or from time to time and IndusInd Bank is authorised to renew the said Deposit without further notice or consent from me / us or the Borrower. That in case of default or Overdraft/ Credit Facility / ies is not repaid on demand, the Bank may take all steps necessary to prematurely encash the Fixed / Fixed Deposit to itself or set off or uplift the securities / Fixed or Fixed Deposits hereby offered or held at any time or transfer / assign or reassign the same considered to be reasonable by the Bank and appropriate the net amounts towards discharge of all my / our liabilities in the account/s with the Bank at any of its branch(es). Should there be any shortfall, I / We hereby undertake to pay the same along with interest at the rate specified in the sanction, on demand by the Bank without any demur and the Bank may reserve its right to initiate appropriate proceedings against me / us for recovery of its dues from me / us. The security held on the terms of this Letter shall act as continuing security for ultimate balance of all monies that may be due from me / us or from the Borrower to the Bank. Neither the said security nor this Letter shall be considered as terminated by reason only of the repayment of any particular Credit Facility or by any change in the constitution or by death / retirement (in case of partnership) or otherwise and shall be fully binding on my / our legal representatives, heirs, executors, administrators and assigns.

	OD Holder 1	OD Holder 2	OD Holder 3
Signature(s) of Applicants			

	FD Holder 1	FD Holder 2	FD Holder 3
Signature(s) of Applicants			

Date: D D M M Y Y Y Y Place:

FOR BANK USE ONLY

Branch Declaration

I / We hereby confirm that the existing account of the customer is KYC compliant and there are no irregularities pending .

Customer signature verified as per bank records.For exceptional cases, the case has been duly sanctioned by us as per Delegation of Powers defined. In case of Applicant being Proprietorship Firm / HUF, we confirm that the documents have been executed by Proprietor / Karta. The FD(S) is/are not of Tax savings type.

Employee Code:

Employee Signature	Branch Head Signature	Branch Stamp

Date: D D M M Y Y Y Y Place: